

26STCP00313 26STCP00313

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-26

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Case Number: 26STCP00313 Hearing Date: June 26, 2026 Dept: 26

TENTATIVE RULING:

The hearing on
the Petition is Placed Off Calendar.

Trial setting conference is scheduled for 07/10/2026 at 9:30
am in Department 26 in the Spring Street Courthouse.

Analysis:

On January 22, 2026,
Plaintiff Keshia R. Berry ("Plaintiff"),
in propria persona, filed the instant action against Defendant Grace
Kane-Chapron ("Defendant"). Although designated as an "Other Petition" in the
Civil Case Cover Sheet, the initial pleading asserts causes of action for (1) violation
of Civil Code § 789.3(a); (2) violation of Civil Code § 1942.5(a); and (3)
violation of Civil Code § 1927. (Compl., ¶¶8 and p. 3.) Defendant filed an Answer, also in propria persona, on March 24, 2026.

When Plaintiff filed
the case, the clerk's office designated it as an "Other Civil Petition" and set
the purported petition for hearing on May 28, 2026. The hearing was then
continued, due to the Court being unavailable, to June 26, 2026. (Minute Order,
04/15/26.) The action is not a petition, however, as it seeks ordinary relief
for the alleged redress of a wrong. (See Code Civ. Proc., § 22.) A petition, on
the other hand, initiates a special proceeding, and the label given to a
pleading does not determine the nature of the case. (People v. Picklesimer
(2010) 48 Cal.4th 330, 340 ["the true nature of a petition or cause of action
is based on the facts alleged and remedy sought in that pleading"].)

Accordingly, the Court changes the designation of this case from "Other Civil Petition" to "Other Complaint" and takes the hearing on the purported petition off calendar. A trial setting conference is scheduled for July 10, 2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

Judicial Assistant to give notice.